

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
KIM SLATER,

Plaintiff

Index No.

Venue is designated
New York County

-against-

Basis of designated
venue is location
of occurrence

CITY OF NEW YORK, LIEUTENANT MULLER,
real name unknown, the person intended being officer
who grabbed plaintiff from the stoop of her house and
threw plaintiff into a police car, and directed Police Officer
Thomas Diaz to write plaintiff a ticket on 6/14/2012,
SERGEANT KENNEDY, Tax Registry No. 906560,
POLICE OFFICER "JANE" BROWN, real name
unknown, person intended being Sergeant Kennedy's
partner on March 22, 2013,

Defendants

-----X

SUMMONS**To the above named Defendants:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a Notice of Appearance, on the plaintiffs' attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 12, 2013

LAW OFFICES OF K.C. OKOLI, P.C.
Attorneys for Plaintiff
KIM SLATER
330 Seventh Avenue

15th Floor
New York, New York 10018
(212) 564-8152

By: _____

K.C. Okoli, Esq.

FOR SERVICE ON

CITY OF NEW YORK
c/o MICHAEL D. CARDOZO
Corporation Counsel
NYC Law Department
100 Church Street
New York, New York 10007

LIEUTENANT MULLER
NYPD
9th Precinct

SERGEANT KENNEDY, Tax Registry No. 906560
NYPD
9th Precinct

POLICE OFFICER "JANE" BROWN
NYPD
9th Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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real name unknown, the person intended being officer
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partner on March 22, 2013,

Defendants

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COMPLAINT

Plaintiff, by his attorneys, LAW OFFICES OF K.C. OKOLI, P.C., complaining of the
defendants, alleges as follows:

JURISDICTION AND VENUE

1. This action is brought pursuant to the Civil Rights Acts, 42 U.S.C. §1983, for violation of the plaintiff's constitutional and civil rights, and pursuant to the common law of the State of New York for false arrest and retaliatory harassment.
2. The jurisdiction of the Court is invoked to secure the protection and redress the deprivation of rights guaranteed to persons, including plaintiff herein, by the Fourth and

Fourteenth Amendments to the Constitution of the United States.

3. Venue is proper in the County of New York based upon the fact that the events or omissions which gave rise to the claims asserted herein occurred within New York County.

PARTIES

4. At all times hereinafter mentioned, plaintiff, KIM SLATER ("SLATER" or "plaintiff"), was a resident of the County of New York, City and State of New York.

5. Upon information and belief, at all times hereinafter mentioned, defendant the CITY OF NEW YORK (hereinafter, "City") is a municipal corporation established under and by virtue of the laws of the State of New York.

6. At all times hereinafter mentioned, the City maintained, operated, controlled and supervised a police department, the New York City Police Department (hereinafter, "NYPD").

7. At all times hereinafter mentioned, defendant LIEUTENANT MULLER ("MULLER"), was a police lieutenant with the NYPD.

8. At all times hereinafter mentioned, defendant SERGEANT KENNEDY ("KENNEDY"), was a police sergeant with the NYPD.

9. At all times hereinafter mentioned, POLICE OFFICER "JANE" BROWN ("BROWN"), was a police officer with the NYPD, and a partner of KENNEDY on March 22, 2013.

10. At all times hereinafter mentioned, the NYPD employed law enforcement officers who performed law enforcement duties for and on behalf of the City within the City's territorial limits, including MULLER, KENNEDY and BROWN.

11. At all times hereinafter mentioned, the individual defendant law enforcement officers, MULLER, KENNEDY and BROWN, were acting in the course and within the scope of their employment as agents or employees of the City.

12. At all times hereinafter mentioned, the individual defendant law enforcement officers, MULLER, KENNEDY and BROWN, were acting under color of the statutes, ordinances, regulations, customs and usages of the NYPD, the City and State of New York, and under the authority of their offices as law enforcement officers.

STATEMENT OF FACTS

13. On June 14, 2012, SLATER was visiting her elderly mother who resides at the 205 Avenue C, an apartment building located in the Borough of Manhattan.

14. At approximately 12:55 after midnight on June 14, 2012, SLATER was standing a few feet away from the front entrance door to the apartment building and far away from the sidewalk, holding her dog and smoking a cigarette.

15. While in the place aforesaid, MULLER who was with Police Officer Thomas Diaz, whom SLATER had known for many years, approached SLATER and ordered SLATER to go inside the apartment building. MULLER's tone was very disrespectful and as though MULLER was talking to a child.

16. When SLATER inquired of MULLER why she had to go into the apartment building at the time, MULLER told SLATER it was because he, MULLER, said so.

17. In response to MULLER, SLATER said to MULLER that MULLER was not her father to order her around, and that her father died many years ago. Besides, she is a responsible

adult.

18. Immediately after SLATER made the aforesaid statement to MULLER, MULLER angrily told SLATER, "I'm your father, and you have to listen to me now". MULLER went on to tell SLATER that if SLATER did not go into the apartment building, SLATER would be arrested.

19. SLATER found MULLER's statement to her very demeaning and disrespectful, and totally unprofessional.

20. While asking MULLER what crime MULLER would arrest her for, SLATER placed a telephone call to the NYPD Internal Affairs Bureau ("IAB"), and reported what was going on.

21. The person at IAB who took SLATER's telephone call then spoke with MULLER. SLATER heard MULLER say, in response to whatever was said to him by the IAB person, "I don't care, she's getting arrested because she didn't obey the order to go inside."

22. After MULLER finished speaking with the IAB, MULLER told SLATER to get someone to come get SLATER's dog because SLATER was going to be arrested and taken to jail.

23. SLATER then called her sister, Leslie, who came down and got SLATER's dog.

24. After Leslie had taken SLATER's dog, but while she was still present, MULLER forcefully grabbed SLATER's arms, twisted them behind her back, and put cuffs on SLATER. While MULLER was doing so, MULLER said to SLATER, "I'm your father, you should have listened to me. Now you're going to jail."

25. After approximately 10 minutes in front of the apartment, MULLER forcefully

shoved SLATER into the police vehicle and took SLATER to the police precinct.

26. Upon arrival at the police precinct, MULLER instructed a female officer to search SLATER and place SLATER in a cell. Said female officer searched SLATER as she was directed and after not finding any contraband on SLATER, placed SLATER in a cell.

27. SLATER was neither photographed nor was SLATER's fingerprints taken.

28. After approximately three (3) hours in the cell, MULLER came back to SLATER and said to her, "I can't believe you called Internal Affairs. You should have gone into the building when I told you and all this could have been avoided."

29. SLATER responded to MULLER that she did not want to speak with MULLER, and like she said before, MULLER is not her father.

30. Thereafter, Police Officer Diaz came to give SLATER a ticket. When SLATER asked Police Officer Diaz why they were doing this, Diaz apologized and said he had to follow the orders of his lieutenant.

31. The ticket which was issued to SLATER on that day required SLATER to make an appearance in court on August 23, 2012. Annexed hereto as **Exhibit A** is a photocopy of said ticket.

32. On August 13, 2012, the case against SLATER which arose out of the aforesaid incident was dismissed by the Court. Annexed hereto as **Exhibit B** is a copy of the Certificate of Disposition of the case.

33. Prior to June 14, 2012, SLATER had made many telephone calls to the IAB to report what she believed was misconduct which she observed on the part of police officers.

34. Police Officer Diaz who was with MULLER on June 14, 2012, was aware of

SLATER's complaints to the IAB, and SLATER believes that MULLER learned of these IAB complaints from Police Officer Diaz.

AS AND FOR A FIRST CAUSE OF ACTION

35. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "34" as if fully set forth herein.

36. Defendants' actions hereinabove described constitute abuse of power and use of excessive force, in violation of plaintiff's right under the Fourth Amendment to the United States Constitution.

37. The aforesaid conduct is subject to redress pursuant to 42 U.S.C. §1983.

38. By reason of the foregoing, plaintiff has suffered loss and damage.

AS AND FOR A SECOND CAUSE OF ACTION

39. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "38" as if fully set forth herein.

40. Defendants' conduct aforesaid, constitutes common law false arrest, assault and battery.

41. By reason of the foregoing, plaintiff has suffered loss and damage.

AS AND FOR A THIRD CAUSE OF ACTION

42. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "41" as if fully set forth herein

43. About two weeks prior to March 22, 2013, at 11th Street and Avenue C, SLATER observed Police Officer Seventh and KENNEDY, when Police Officer Seventh shouted out to her, "There goes Kim Slater who called the Internal Affairs on me." At that time, Police Officer Seventh said many other uncomplimentary things about SLATER.

44. On or about March 22, 2013, at approximately 9:40 PM, SLATER got a call that police officers had pulled over her nephew, Eliot Caldwell, in front of 185 Avenue C, in the Borough of Manhattan.

45. When SLATER went to investigate, SLATER observed about 4 to 5 police cars surrounding the car that her nephew was driving; the police officers were apparently searching the vehicle and SLATER's nephew was standing nearby talking on his telephone.

46. SLATER then recognized Detective Advent who was present at the scene and went to find out from the detective what was going on. Detective Advent assured SLATER that everything was alright.

47. Detective Advent informed SLATER that the police had received information that Mr. Caldwell was driving around with a gun so they pulled him over and searched the car but found nothing.

48. While SLATER was speaking with Detective Advent, KENNEDY yelled out, "Oh there goes the fucking gangster mom (referring to SLATER). All her fucking kids are drug dealers and she like to call fucking IAB."

49. In response, SLATER said to KENNEDY that she did not know what KENNEDY was talking about. And KENNEDY shouted back that the Slaters were SLATER's kids and that they were "fucking menaces."

50. SLATER then pointed out to KENNEDY that she had only one son who was in Catholic school and that KENNEDY must be referring to SLATER's nephews.

51. KENNEDY kept on going that the Slaters, including SLATER, were all scums. SLATER then retorted, "I wasn't even talking to you," and turned to Detective Advent and stated "You see how he's talking to me?"

52. At that very point, KENNEDY said to SLATER, "This is crime scene. Move the fuck away from here."

53. SLATER then said to KENNEDY, "What's your badge number?" This infuriated KENNEDY who said to SLATER, "So you can call the fucking IAB?"

54. Without any more word being said, KENNEDY forcefully grabbed and bended SLATER's arms and puts SLATER in handcuffs.

55. As KENNEDY placed handcuffs on SLATER, he stated: "Now you are going to jail, you piece of scum, you troll bitch."

56. KENNEDY was out of control. He said a lot of things all which Slater does not remember now. Some of the things which KENNEDY said to SLATER were: he was sure that SLATER had IAB on speed dial on her phone; that SLATER was a "snitch bitch"; that SLATER was always calling the IAB, thinking that she is "fucking bad"; that "the Slaters are fucking scums"; "you are always around fucking young boys, probably giving them guns"; "fuck you, you fucking troll all you do is call IAB"; "your mother should have aborted all you fucking trolls"; "I wish your nephew would have got killed. He's just another piece of shit just like you"; "I'll tell everybody that you're a snitch so they can kill your ass even though I wish I could do it myself"; "I hope you know you are not coming out of jail until Monday"

57. At the precinct, KENNEDY shouted out to BROWN, "Check out that bitch real good because I know she has drugs." The "bitch" was in obvious reference to SLATER.

58. BROWN began searching SLATER, and pulled up SLATER's shirt in the presence of other male prisoners. When SLATER protested BROWN's conduct, BROWN took SLATER to a bathroom near the cell where 4 or 5 male police officers were present. BROWN again lifted SLATER's shirt, pulled SLATER's bra and asked SLATER to show her breasts. BROWN then searched around SLATER's waist and a little below found no contraband.

59. Thereafter, BROWN placed SLATER in a cell where SLATER remained for approximately two (2) hours before KENNEDY gave her a ticket and released her.

60. As SLATER was leaving the precinct, KENNEDY asked SLATER whether SLATER was going to call the IAB, to which SLATER said "No".

61. The ticket which KENNEDY issued to SLATER required SLATER to appear in court on June 4, 2013. Annexed hereto as **Exhibit C** is a copy of said ticket.

62. On July 10, 2013, the case against SLATER which arose out of the aforesaid incident was dismissed by the Court. Annexed hereto as **Exhibit D** is a copy of the Certificate of Disposition of the case.

63. Defendants' actions hereinabove described constitute abuse of power and use of excessive force, in violation of plaintiff's right under the Fourth Amendment to the United States Constitution.

64. The aforesaid conduct is subject to redress pursuant to 42 U.S.C. §1983.

65. By reason of the foregoing, plaintiff has suffered loss and damage.

AS AND FOR A FOURTH CAUSE OF ACTION

66. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "41" as if fully set forth herein.

67. Defendants' conduct aforesaid, constitutes common law false arrest, assault and battery.

68. By reason of the foregoing, plaintiff has suffered loss and damage.

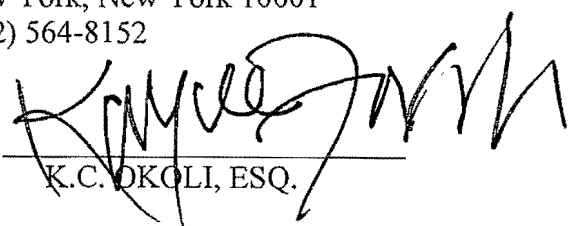
69. Jury trial is demanded for all matters triable by jury.

WHEREFORE, Plaintiff requests that the Court grant the following reliefs:

- a) On the First Cause of Action, compensatory damages in the sum of FIVE HUNDRED THOUSAND DOLLARS (\$500,000.00);
- b) On the Second Cause of Action, compensatory damages in the sum of FIVE HUNDRED THOUSAND DOLLARS (\$500,000.00);
- c) On the Third Cause of Action, compensatory damages in the sum of FIVE HUNDRED THOUSAND DOLLARS (\$500,000.00);
- d) On the Fourth of Action, compensatory damages in the sum of FIVE HUNDRED THOUSAND DOLLARS (\$500,000.00);
- e) Punitive damages against each of the individual officers in the sum of FIFTY THOUSAND DOLLARS (\$50, 000.00);
- f) Attorney's fees;
- g) Such other or further relief, including costs, disbursements and interest, as to this Court shall seem just and proper in the circumstances.

Dated: New York, New York
September 12, 2013

LAW OFFICES OF K.C. OKOLI, P.C.
Attorneys for Plaintiff
KIM SLATER
330 Seventh Avenue
15th Floor
New York, New York 10001
(212) 564-8152

By: 

K.C. OKOLI, ESQ.

FOR SERVICE ON

CITY OF NEW YORK
c/o MICHAEL D. CARDOZO
Corporation Counsel
NYC Law Department
100 Church Street
New York, New York 10007

LIEUTENANT MULLER
NYPD
9th Precinct

SERGEANT KENNEDY, Tax Registry No. 906560
NYPD
9th Precinct

POLICE OFFICER "JANE" BROWN
NYPD
9th Precinct

EXHIBIT A

Law Offices of K.C. OKOLI, P.C.
330 Seventh Avenue, 15th Floor, New York, N.Y. 10001

433556706-6

Susp/Rev Check ☐ Yes ☐ No
Motorist Exhibited License ☐ Yes ☐ No

The People of The State of New York VS.

Last Name First Name M.I.

SLATER, KIM, K

Street Address Apt. No.

205 AVE C 23G

City State Zip Code

NY NY 10009

ID Number Date of Birth Sex

448 467 379 MO 2 DAY 28 YR 46 F

Lic. State Lic. Class or ID Type Date Expires Operator Owns Vehicle

NY D MO 2 DAY 28 YR 20 ☐ Yes ☐ No

OPERATOR AND/OR OWNER OF VEHICLE BEARING LICENSE

Plate No. Reg. Expires

PAS OMT COM OML Other MO DAY YR

PAS OMT COM OML Other MAKE CHEV FORD HONDA DODG OLDS BUICK TOYT NISS Other

SEDAN SUBN VAN TRUCK MCY Other Veh. Yr. Veh. Color Alternate Plate State

VIN No.

THE PERSON DESCRIBED ABOVE IS CHARGED AS FOLLOWS

AM Time PM Date of Offense County Precinct

X 1255 ☐ 6/14/12 NY 09

Place of Occurrence

F/O 205 AVE C

IN VIOLATION OF

Sec 240.30 Sub L VTL Traff. Admin. Penal Other

Description of Violation, if Not Shown Below. (If returnable to Criminal Court, indicate Court Location and Date of Appearance below and COMPLETE, DATE, AND SIGN INFORMATION ON REVERSE SIDE.)

DIS.CON. REFUSE LAWFUL ORDER

SPEEDING DISOBEY TRAFF CONT DEV Uninspec. Unreg. Unlic.

MPH In MPH Zone ☐ Sign Pave ☐ Veh. Veh. Oper.☐ Signal Marks Uninsur. Corn. Bus Haz. Mat.

The person described above is summoned to appear at CRIMINAL COURT Summons Part County

Located at 346 BROADWAY 1ST FL NY

Date of Appearance 9:30 a.m. 23 day of AUG year 2012

I personally observed the commission of the offense charged above. False statements made herein are punishable as a Class A Misdemeanor pursuant to Section 210.45 of the Penal Law. Affirmed under penalty of perjury.

Rant/Full Signature of Complainant

Complainant's Full Name (printed) Command Code

DIAZ, THOMAS 804

Agency/NCIC Squad Tax Registry No.

NYPD A3 913943

I acknowledge receipt of this summons. I understand it is my responsibility to read and comply with the instructions on my copy, and that my signature below is not an admission of guilt.

Name Date

CRIMINAL COURT INFORMATION (DESCRIBE OFFENSE)

RESPONDENT REFUSED A
LAWFUL ORDER TO DISPERSE
FROM LOCATION & WAS
WITH A GROUP OF PEOPLE
SHOUTING FUCK NUMEROUS
TIMES. SHE WAS HEARD BY
A/O SHOUTING FUCK NUMEROUS
TIMES, CAUSING PUBLIC ANNOYANCE

WARRANT CHECK

☒ Yes☐ No

VIA Q-TEK

I PERSONALLY OBSERVED THE COMMISSION OF THE OFFENSE CHARGED HEREIN. FALSE STATEMENTS MADE HEREIN ARE PUNISHABLE AS A CLASS A MISDEMEANOR PURSUANT TO SECTION 210.41 OF THE PENAL LAW, AFFIRMED UNDER PENALTY OF PERJURY.

6/14/12

Date

Signature

DEFENDANT DESCRIPTION

Eye Color BR Hair Color BLK Ethnicity BLKHt. 5'5" Wt. 170 Phone # _____

ARRAIGNMENT

Defendant pleads

☐

Guilty

☐

Not Guilty

Date

Judge

(1)

(2)



* 4 3 3 5 5 6 7 0 6 6 *

EXHIBIT B

Law Offices of K.C. OKOLI, P.C.
330 Seventh Avenue, 15th Floor, New York, N.Y. 10001

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

CERTIFICATE OF DISPOSITION
NUMBER:10203

THE PEOPLE OF THE STATE OF NEW YORK
VS.

NO FEE

SLATER, KIM K
DEFENDANT

02/28/1966
DATE OF BIRTH

205 AVENUE C APT 23G 23G
ADDRESS

NEW YORK NY 10009-2513
CITY STATE ZIP

06/14/2012
ISSUE DATE

DOCKET NUMBER:2012SN076375

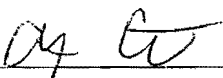
SUMMONS NUMBER:4335567066

PL 240.20 06 0V
ARRAIGNMENT CHARGES

CASE DISPOSITION INFORMATION:

DATE	COURT ACTION	JUDGE	PART
08/15/2012	DISM - LEGALLY INSUFFICIENT	BURKE,J	SAP-D

I HEREBY CERTIFY THAT THIS IS A TRUE EXCERPT OF THE RECORD ON FILE IN THIS COURT.


COURT OFFICIAL SIGNATURE AND SEAL 02/21/2013
DATE

(CAUTION: THIS DOCUMENT IS NOT OFFICIAL UNLESS EMBOSSED WITH THE
COURT SEAL OVER THE SIGNATURE OF THE COURT OFFICIAL.)

EXHIBIT C

Law Offices of K.C. OKOLI, P.C.
330 Seventh Avenue, 15th Floor, New York, N.Y. 10001

CRIMINAL COURT INFORMATION (DESCRIBE OFFENSE)

AT T/P/O DEPT DID
REFUSE NO ORDER TO
DISPERSE LOCATION
OF NYPO INVESTIGATION

WARRANT CHECK

☒ Yes

☐ No

I PERSONALLY OBSERVED THE COMMISSION OF THE OFFENSE CHARGED HEREIN. FALSE STATEMENTS MADE HEREIN ARE PUNISHABLE AS A CLASS A MISDEMEANOR PURSUANT TO SECTION 210.45 OF THE PENAL LAW, AFFIRMED UNDER PENALTY OF PERJURY.

8 22 13
Date

Signature

DEFENDANT DESCRIPTION

Eye Color BR Hair Color BL Ethnicity BL
Ht. _____ Wt. _____ Phone # _____

ARRAIGNMENT

Defendant pleads ☐ Guilty ☐ Not Guilty

Date

Judge

(1)

(2)



* 4 3 3 6 1 0 0 7 2 2 *

CRIMINAL COURT OF THE CITY OF NEW YORK
COUNTY OF NEW YORK

CERTIFICATE OF DISPOSITION
NUMBER: 11541

THE PEOPLE OF THE STATE OF NEW YORK
VS.

NO FEE

SLATER, KIM K

12/28/1966

DEFENDANT

DATE OF BIRTH

205 AVENUE C APT 23G 23G

ADDRESS

NEW YORK NY 10009-2513

03/22/2013

CITY STATE ZIP

ISSUE DATE

DOCKET NUMBER: 2013SN037183

SUMMONS NUMBER: 4338100722

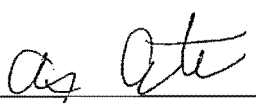
PL 240.20 06 0V

ARRAIGNMENT CHARGES

CASE DISPOSITION INFORMATION:

DATE	COURT ACTION	JUDGE	PART
07/10/2013	DISM - LEGALLY INSUFFICIENT	CATALDO, J	SAP

I HEREBY CERTIFY THAT THIS IS A TRUE EXCERPT OF THE RECORD ON FILE IN THIS COURT.


COURT OFFICIAL SIGNATURE AND SEAL

07/10/2013

DATE

(CAUTION: THIS DOCUMENT IS NOT OFFICIAL UNLESS EMBOSSED WITH THE
COURT SEAL OVER THE SIGNATURE OF THE COURT OFFICIAL.)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KIM SLATER,

Index No.

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POLICE OFFICER "JANE" BROWN, real name
unknown, person intended being Sergeant Kennedy's
partner on March 22, 2013,

Defendants

-----X

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SUMMONS AND COMPLAINT

=====

LAW OFFICES OF K.C. OKOLI, P.C.
330 Seventh Avenue
15th Floor
New York, N.Y. 10001
(212) 564-8152 (voice)
(212) 268-3443 (fax)